SUPREME COURT OF INDIA

APPELLATE JURISDICTION · THREE-JUDGE BENCH

Criminal Appeal No. 221 of 1960

CNR: SCIN010002211960

Date of Pronouncement: 24 November, 1961

Citation: 1962 Supp (1) SCR 567

CORAM: Hon'ble K. Subba Rao, Raghubar Dayal, J.R. Mudholkar, JJ.

Petitioner / Appellant: Commander K.M. Nanavati

- VERSUS -

Respondent / State: State of Maharashtra

SUBJECT: CRIMINAL LAW & GRAVE PROVOCATION **AUTHORITY: Good Law (Binding 3-Judge Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

The test of grave and sudden provocation is whether a reasonable person placed in the situation of the accused would be so provoked as to lose his self-control. The fatal blow must be traced clearly to the influence of passion arising from that provocation, with no intervening cooling-off period.

STATUTORY PROVISIONS INTERPRETED: Section 300 Exception 1 IPC, Section 302 IPC, Section 304 Part I IPC

FINAL DISPOSITION: CONVICTION UNDER SECTION 302 IPC CONFIRMED

EXECUTIVE SUMMARY:

Foundational precedent on the test of 'grave and sudden provocation' under Exception 1 to Section 300 IPC. Sufficient cooling-off period negates the plea of sudden provocation.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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